

21STCV38210 21STCV38210

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV38210 Hearing Date: July 16, 2026 Dept: B

Tentative Ruling

Queveda v. Rodziewicz, Case no. 21STCV38210

Hearing date July 17, 2026

Defendant Rodziewicz's Motion for
Summary Judgment

Plaintiffs'
Motion for Relief from Missed Opposition Deadline

Plaintiffs

Queveda and Chavarria sued defendant Rodziewicz for personal injuries arising out of a motor vehicle accident. Plaintiffs filed a notice of settlement. See 11/12/25 Notice. Plaintiffs subsequently retained new counsel and represented they had not signed releases nor consented to the settlement.

Defendant

moved for summary judgment seeking to enforce the settlement. Plaintiffs failed to file timely opposition and applied ex parte for relief from this failure. See 6/8/26 Min. Order. The court granted relief, allowing opposition to be filed and continuing the hearing date. Id. Defendant opposes the motion for relief. The court rules on the motion for relief, then considers the motion for summary judgment.

Plaintiffs' Motion for Relief from Missed Opposition
Deadline

Code

Civ. Proc. §473 authorizes the court, on any terms as may be just, to relieve a party from a judgment, dismissal, order, or other proceeding taken against it through its mistake, inadvertence, surprise, or excusable neglect. An application for discretionary relief must be made within a reasonable time, in no event exceeding six months. Code Civ. Proc. §473(b). Section 473 is a remedial statute that must be applied liberally so that, wherever possible, cases are resolved on their merits. *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 255-256.

Plaintiffs

argue the failure to file timely opposition resulted from surprise, mistake and excusable neglect. Plaintiffs' counsel Blanco asserts defendant served notice of the advanced MSJ hearing date to an incorrect email address, making plaintiffs' counsel unaware of the advanced opposition deadline. See Decl. Blanco, para. 5, exh. A.

Defendant

argues relief should not be granted, as Blanco did not inform defense counsel the email address was no longer in use or being monitored. Decl. Muench, para. 3, exh. B. Defendant argues Blanco was present when the MSJ hearing date was advanced and consented to the new date. *Id.* at para. 5; 2/9/26 Min. Order. Defendant argues plaintiff is not entitled to relief based on surprise.

The

standard for relief under Code Civ. Proc. §473 is broad. Relief is not limited solely to inadvertence or surprise but mistake or excusable neglect. Blanco was unaware of the advanced hearing date until 6/4/26. See Decl. Blanco, para. 8. While this reflects a failure of memory, as Blanco was present when the hearing was advanced, failing to remember or calendar an opposition deadline is a mistake and/or neglect. Relief is broadly granted, especially on dispositive motions, reflecting California's strong public policy of resolving issues on their merits. The motion for relief is GRANTED; the court will consider the opposition.

Defendant Rodziewicz's Motion for Summary Judgment

A

motion for summary judgement must be granted if there is no triable issue of

material fact as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Defendant

moves for summary judgment, asserting the settlement agreement of 11/12/25 is binding. “[O]ral agreements to compromise and settle lawsuits.... are enforceable in a number of ways, including... by motion for summary judgment.” Gorman v. Holte (1985) 164 Cal.App.3d 984, 988. Settlements have the same attributes of a judgment and operate as a bar to reopening the original controversy. See Folsom v. Butte County Ass’n. of Governments (1982) 32 Cal.3d 668, 677.

The

parties engaged in rounds of negotiations, agreeing on a settlement of \$500,000 for Queveda and \$900,000 for Chavarria. SSMF 6-8. Plaintiffs’ counsel confirmed the offer was accepted and filed a notice of settlement on 11/12/15. SSMF 9-11. Plaintiffs failed to finalize the settlement agreement or sign releases. SSMF 15. This is sufficient to shift the burden to plaintiffs.

Plaintiffs

argue existence of a binding settlement agreement is a question of fact for the jury. This is unavailing. “[O]ral agreements to compromise and settle lawsuits.... are enforceable in a number of ways, including... by motion for summary judgment.” Gorman v. Holte (1985) 164 Cal.App.3d 984, 988.

Plaintiffs

argue defendant has not presented a signed settlement agreement or release, nor a writing in which plaintiffs authorized counsel to settle their claims. Plaintiffs argue they never authorized prior counsel to finalize settlement, so are not bound to the settlement.

Counsel

engaged in email negotiations in November 2025. See SSMF 3-7. On 11/10/25

at 5:38PM plaintiff's then-counsel's stated: "[o]kay Deal at 900k and 500k. We good?" SSMF 8. On 11/10/25 at 5:52PM defendant's counsel replied: "[w]e good. Done deal at Chavarria \$900k and Quevado \$500k. I will send over closing docs tomorrow. Please file a notice of settlement to vacate everything while we complete our settlement." SSMF 9. Plaintiff's then-counsel filed notice of settlement on 11/12/25. SSMF 11.

Plaintiffs

never signed a settlement agreement nor release. SSAMF 17. Plaintiffs contend they never authorized counsel to settle their claims or execute a written release. SSAMF 18-20. Plaintiffs never executed associated release/closing documents required to fulfill terms of the purported settlement. SSAMF 22-23.

Settlement

is "such a serious step that it requires the client's knowledge and express consent." *Levy v. Superior Court* (1995) 10 Cal.4th 578, 583.) An attorney has no power to bind a client to a settlement absent the client's specific authorization. *Blanton v. Womancare, Inc.* (1985) 38 Cal.3d 396, 404. Plaintiffs' contentions that they did not authorize prior counsel to settle, alongside the lack plaintiffs' signatures or other evidence that prior counsel had authority to settle, renders existence of a binding settlement agreement a triable issue of material fact, precluding summary judgment. DENIED.